Repairs in rental properties

Repairs are either 'urgent' or 'non-urgent'. Rental providers must make urgent repairs immediately. Rental providers must make non-urgent repairs within 14 days of getting a written request.

There are rules for what happens if a rental provider ignores a request for a repair to be made.

Renters must continue to pay rent even if they are waiting for a repair to be made.

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This information about repairs applies to rental properties, rooming houses, and caravan parks and residential parks. For ease of reading we have used the term 'rental provider' to include rooming house operator, caravan owner and caravan park operator. We have also used the term renter to include renters and residents.

For other information about repairs, see:

- repairs under a park site agreement (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-under-a-park-site-agreement)
- repairs to communal park facilities (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-to-communal-park-facilities), and

- resolving rental disputes (https://www.consumer.vic.gov.au/housing/renting/legal-and-dispute-support/resolving-disputes).

The difference between urgent and non-urgent repairs

The law defines a list of urgent repairs. Anything else is a non-urgent repair. A repair is non-urgent if the renter can continue to safely live in the property. Non-urgent repairs include things like a broken dishwasher or loose bathroom tiles.

If a repair is not on the list below, it is a non-urgent or general repair.

List of urgent repairs

Urgent repairs must be done immediately because they make the property unsafe or difficult to live in.

Anything on this list is legally defined as an urgent repair:

- burst water service
- blocked or broken toilet system
- serious roof leak
- gas leak
- dangerous electrical fault
- flooding or serious flood damage
- serious storm or fire damage
- an essential service or appliance for hot water, water, cooking, heating, or laundering is not working
- the gas, electricity or water supply is not working
- a cooling appliance or service provided by the rental provider is not working
- the property does not meet minimum standards (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/minimum-standards)
- a safety-related device, such as a smoke alarm or pool fence, is not working
- an appliance, fitting or fixture that is not working and causes a lot of water to be wasted
- any fault or damage in the property that makes it unsafe or insecure, including pests, mould or damp (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/pests-infestations-and-mould) caused by or related to the building structure
- a serious problem with a lift or staircase.

Organising and paying for repairs

The rental provider must organise and pay for all repairs if they are not the renter's fault.

If the renter caused the damage, the renter may have to pay for the repairs.

Renters must tell their rental provider or property manager in writing about any repairs that need to be made as soon as possible.

Urgent repairs

Renters must contact the rental provider or agent straight away to ask for an urgent repair to be made.

Renters should:

- use the emergency phone number they were given when they moved in to contact the provider
- confirm their request in writing in case they need to prove they made the request.

Rental providers or agents must make sure the repair is done immediately.

If the rental provider or agent does not respond to the request, the renter can organise and pay for the repair. They can only do this if the repair does not cost more than $2500. The rental provider must pay them back within 7 days. If the funds are not reimbursed within 7 days, the renter can apply to Rental Dispute Resolution Victoria (RDRV) for help.

If the dispute is not resolved by RDRV, they can help you apply to VCAT for a compensation order (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies).

Renters who cannot afford to pay for $2500 up front can contact us using our online enquiries form (https://www.consumer.vic.gov.au/contact-us/resolve-your-problem/general-enquiry).

Non-urgent repairs

A request for general repairs should:

- be in writing
- include the date on the request.

We suggest using one of these forms to request a non-urgent repair:

- renters: Notice to rental provider of rented premises (Word, 97KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-rental-provider-of-rented-premises.docx)
- caravan park residents: Notice to owner of caravan or caravan park (Word, 743KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-caravan-park-owner-or-caravan-owner.docx)
- rooming house residents: Notice to operator of rooming house (Word, 734KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-rooming-house-operator.docx).

Rental providers or agents must make sure the repair is done in 14 days from the date of the request. Renters can take steps if rental providers are not responding (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/repairs/repairs-in-rental-properties#rental-provider-does-not-respond-to-a-request).

Who can make a repair

For work that requires a license or registration, the renter or rental provider must use a qualified person.

All repairs must be made to the standard a tradesperson would make them.

A renter or rental provider can make a repair (that doesn't require a licence or registration) as long as they do it to the same standard as a tradesperson.

Paying rent during repairs

Renters must continue to pay rent while waiting for repairs to be done or waiting to be paid back for repairs. However, they can apply to RDRV for their rent to be paid into CAV's Rent Special Account. This means CAV holds the rent and the rental provider does not receive it until the issue is sorted out.

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/).

Rental provider does not respond to a request

Renters should keep a record of their attempts to contact their rental provider.

If your rental provider or agent has not organised a timely repair, you can contact us via our online enquiries form (https://www.consumer.vic.gov.au/contact-us/resolve-your-problem/general-enquiry).

Urgent repairs costing $2500 or less

Renters can organise and pay for urgent repairs themselves when:

- they have notified the rental provider or property manager
- there has not been a prompt response
- the urgent repair costs $2500 or less.

Renters should keep all receipts and give the landlord a written notice asking them to repay the cost of the urgent repairs.

They must do this within 7 days of the repairs being made.

Rental providers have 7 days to pay from the date they receive written notice. If the rental provider does not repay, the renter can apply to RDRV.

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies). VCAT can order the rental provider to repay the renter.

We recommend using one of these forms to notify a rental provider about payment for an urgent repair:

- renters: Notice to rental provider of rented premises (Word, 97KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-rental-provider-of-rented-premises.docx)
- caravan park residents: Notice to owner of caravan or caravan park (Word, 743KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-caravan-park-owner-or-caravan-owner.docx)
- rooming house residents: Notice to operator of rooming house (Word, 734KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-rooming-house-operator.docx).

Urgent repairs costing more than $2500

Renters cannot organise and pay for urgent repairs that cost more than $2500. Instead, they should apply to RDRV for help. RDRV will review the application within two business days.

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies) for a repair order. VCAT can order the rental provider to arrange and pay for the repairs.

Non-urgent repairs

Renters have rights if the rental provider does not make non-urgent repairs within 14 days of the date of the written request.

Renters can ask us to do a repairs inspection so they can get a report directing the rental provider to make the repairs. If the report says the rental provider has to make the repairs but they are still not done, the renter can ask RDRV for help to enforce the report.

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies).

The renter may apply to VCAT if the rental provider does not make the repairs within 14 days even without a repairs inspection and report.

Rules when the renter is at fault

A rental provider can tell a renter to make or pay for repairs if they caused the damage or fault.

They must give the renter a 'repair notice'. This is a written notice that says:

- what the damage is
- that the damage was caused by the renter
- whether they want the renter to repair the damage, or whether the rental provider will repair it.

If the renter is to organise the repair this must be done within 14 days and to the standard a tradesperson would make it. If they don't do this, the rental provider may organise the repair at the renter's expense.

If the rental provider is to organise the repair, they may ask the renter to cover the reasonable cost of repairs. Reasonable costs means costs that most people would think are fair. The law doesn't define exactly what reasonable costs are, so if people can't agree what is reasonable, they can (https://www.vcat.vic.gov.au/)apply to RDRV to help reach an agreement.

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies).

Efficient replacements

If any water, gas or electricity appliances, fittings or fixtures need to be replaced, the rental provider must replace them with items that meet the minimum efficiency standards (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/gas-electrical-and-water-safety-standards/efficiency-standards-for-replacement-appliances-and-fixtures).

Resolving disputes and issues

Try to resolve disputes by negotiating with the other person. If you cannot reach an agreement, there are formal ways to resolve disputes depending on your situation.

Repairs inspection

One of our inspectors can visit the property and write a report about the repairs. This is a free service.

Renters can ask us for a repairs inspection if:

- the renter and rental provider cannot agree on who is at fault for a non-urgent repair
- the rental provider has ignored a request for non-urgent repairs to be made
- the renter wants us to investigate whether the rental provider has failed to ensure the property is maintained properly.

Renters can ask us to do a repairs inspection by using the Request for repairs inspection or rent assessment (Word, 115KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/request-for-repairs-inspection.docx) form. You must include the written notice sent to the rental provider with the form.

We will send both the renter and the rental provider a copy of the report.

Applying to RDRV

RDRV is a free alternative dispute resolution service offered by VCAT.

It's available to renters, rental providers and estate agents to resolve disputes about many renting issues, including rent increases, repairs and bonds.

You can contact RDRV (https://www.rdrv.vic.gov.au/about-rdrv/contact-rdrv) by phone, online or in person at any VCAT office.

Each application is case managed by a skilled resolution coordinator. They'll liaise between you and your rental provider to try to achieve a resolution at the earliest possible point.

A range of alternative dispute resolution methods may be used, including facilitated discussions and mediation.

For more information, visit rdrv.vic.gov.au (https://www.rdrv.vic.gov.au/)

Applying to VCAT

If the dispute is not resolved by RDRV, they can help you apply to VCAT (https://www.vcat.vic.gov.au/case-types/residential-tenancies/apply-residential-tenancies).

Renters can apply to RDRV or VCAT if a rental provider:

- has not made an urgent repair
- has not repaid them for an urgent repair the renter organised and paid for because the rental provider did not respond to their request
- has ignored a repairs inspection report that says they must make a repair.

Rental providers can apply to RDRV or VCAT if the renter:

- has not paid the rental provider back for a repair that was the renter's fault.

Rental providers and tradespeople entering the property

Making repairs is one of the reasons a rental provider or agent can enter a rental property. They also have the right to bring someone to make the repairs.

They must give the renter at least 24 hours notice. They can only enter the property between 8am and 6pm on any day except a public holiday.

However, for an urgent repair, a renter might agree to let them enter at different times or with less notice.

Read more about rental providers entering a property (https://www.consumer.vic.gov.au/housing/renting/rental-providers-inspecting-or-entering-a-property/when-a-rental-provider-can-enter-a-property).

Forms you might need

To request a non-urgent repair or reimbursement for urgent repairs, use one of these forms:

- renters: Notice to rental provider of rented premises (Word, 97KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-rental-provider-of-rented-premises.docx)
- caravan park residents: Notice to owner of caravan or caravan park (Word, 743KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-caravan-park-owner-or-caravan-owner.docx)
- rooming house residents: Notice to operator of rooming house (Word, 734KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/n

otice-to-rooming-house-operator.docx).

To get help from us, use one of these forms:

- Request for repairs inspection or rent assessment (Word, 115KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/request-for-repairs-inspection.docx)
- Online enquiries form (https://www.consumer.vic.gov.au/contact-us/resolve-your-problem/general-enquiry).

We have guidelines that clarify timeframes for responding to urgent repairs. See Guidelines 4 - Urgent repairs (Word, 297KB) (https://www.consumer.vic.gov.au/library/publications/housing-and-accommodation/renting/guideline-4--urgent-repairs.docx).

Sections of the Act

If you want to know what the law says about urgent and non-urgent repairs, you can read these sections of the *Residential Tenancies Act 1997 (https://www.legislation.vic.gov.au/in-force/acts/residential-tenancies-act-1997)*:

- Section 72 – Urgent repair
- Section 74 – Application to Director to investigate need for non-urgent repairs
- Section 75 – Application to Tribunal for non-urgent repairs.

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(https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people)

We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.

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